

25NNCV02848 25NNCV02848

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Case Number: 25NNCV02848 Hearing Date: August 5, 2026 Dept: T

Alliant

Credit Union vs. Christina L Batchelder

Motion

to Compel Initial Responses to Interrogatories and Document Requests

Moving Party: Plaintiff Alliant

Credit Union

Responding Party: None

Tentative Ruling: Grant

RULING

As the Court finds that Plaintiff Alliant

Credit Union ("Plaintiff") properly served Defendant Christina L. Batchelder

("Defendant") with a first set of special interrogatories and requests for

production on April 6, 2026, and that Defendant failed to timely respond to the

special interrogatories and request for production, the motion to compel

verified responses, without objections, to these interrogatories and requests

is granted. (Code Civ. Proc. § 2030.290,

subd. (b); Code Civ. Proc. § 2031.300, subd. (b).) Furthermore, given the absence of any

circumstances that would make the imposition of sanctions unjust, the request

for monetary sanctions in the amount of \$827.50 is granted. (Code Civ. Proc. § 2030.290, subd. (c); Code

Civ. Proc. § 2031.300, subd. (c).)

However, as Plaintiff has combined two

separate discovery motions into one filing, this order is stayed pending the Court's receipt of the required fee payments under Government Code section 70617 for unpaid fees attributable to one of these motions. (Gov. Code § 70617, subd. (a) ["Except as provided in subdivisions (d) and (e), the uniform fee for filing a motion, application, or any other paper requiring a hearing subsequent to the first paper, is sixty dollars (\$60)."]; Gov. Code § 70617, subd. (f) ["Regardless of whether each motion or matter is heard at a single hearing or at separate hearings, the filing fees required by subdivisions (a), (c), (d), and (e) apply separately to each motion or other paper filed."].) In addition, Plaintiff is directed in the future to file separate motions for each method of discovery.

Plaintiff

Alliant Credit Union's Motion to Compel Initial Responses to Interrogatories and Document Requests is GRANTED. Defendant's responses are due no later than 20 days after Plaintiff pays the required filing fees and serves notice of this ruling.

Plaintiff's

request for monetary sanctions is GRANTED in the total amount of \$827.50 against Defendant. Said sanctions shall be paid to counsel for Plaintiff within 30 days of this order.

The

Court's order is stayed pending receipt of Plaintiff's unpaid filing fees in the total amount of \$60.00.

Alliant

Credit Union vs. Christina L Batchelder

Motion

to Deem Matters Admitted

Moving Party: Plaintiff Alliant

Credit Union

Responding Party: None

Tentative Ruling: Grant

RULING

In considering the papers, the Court finds that Plaintiff Alliant Credit Union ("Plaintiff") properly served Defendant Christina L. Batchelder ("Defendant") with a first set of requests for admission on April 6, 2026, and that Defendant failed to timely respond to these propounded requests. Therefore, as there is no evidence before the Court establishing that Defendant served a substantially compliant response to the admission requests before the hearing date, the Court "shall" grant the motion and deem these requests admitted.

(Code Civ. Proc. § 2033.280, subd. (c); St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778, citation omitted ["[I]n the event timely RFA responses are not served, the court is required to grant the propounding party's deemed admitted motion 'unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.'"].)

Plaintiff

Alliant Credit Union's Motion to Deem Matters Admitted is GRANTED.